THE 2024 CONSTITUTION OF THE GHANAIAN COMMUNITY IN RUSSIA (*GCR*)



PREAMBLE

Recognizing the need for cooperation and unity among members for improved development of Ghanaians living in Russia. We do hereby formally resolve to adopt, enact, and give ourselves this constitution.

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CHAPTER 1 : THE COMMUNITY AND THE CONSTITUTION

Name

Article 1 *Clause (1).* The name of the Community shall be known and called "Ghanaian Community in Russia*",* hereinafter referred to as *GCR*.

Slogan

Clause (2). The slogan of the *GCR* shall be **"***GCR*, Get Involved**!"**

Vision

Clause (3). The vision of the *GCR* shall be, to be a community well positioned to create an enabling environment to articulate and implement programs to address the many issues confronting members.

Mission

Clause (4). The mission of the *GCR* shall be to support members irrespective of socio-economic status, geographical location, gender, religion, occupation, clan, or tribe.

Aims and objectives

Clause (5). Unless otherwise stated in this constitution, the aims and objectives of the *GCR* shall be to;

a. promote the image of the interest of the Ghanaian Community in Russia.
b. serve the overall welfare of members in social matters.
c. educate members on current issues through publication and interpersonal interaction
d. to ensure sustainable development of members.
e. unite members through networking.

Supremacy of the constitution

Article 2. *Clause (1)*. This Constitution shall be the supreme law for the governance of members and branch communities, under the *GCR* and any other constitution and/or law found to be inconsistent with any provision in this Constitution shall, to the extent of the inconsistency, be null and void.

Clause (2). Notwithstanding 2(1), this Constitution shall be subject to the Constitution of Ghana, and the Constitution of the Russian Federation.

Clause (3). In the event of any inconsistency regarding any *GCR* branch, a provision of this Constitution shall take precedence over any provision to the contrary in that branch constitution to the extent of the inconsistency.

CHAPTER 2: MEMBERSHIP

Eligibility for membership

Article 3. *Clause (1).* Membership in the *GCR* is open to all Ghanaian nationals residing in the Russian Federation.

Registration of members

Clause (2). Any person, described in 3(1), willing to be part of *GCR* shall fulfil the following requirements:

a. submit a completed membership application form to the National Executive council.

b. take an oath of allegiance in the manner prescribed in this constitution.

Clause (3). Registration as a member of the GRC shall be done once.

Rights of members

Clause (4). Every member of the *GCR* shall have the right to

a. equal treatments.

b. have a copy of this constitution.

c. subject to the provisions of this constitution, vote during general elections and referenda of the *GCR*.

d. subject to the provisions of this constitution, vote in all general elections and referenda of the *GCR*.

e. subject to the provisions of this constitution, contest for any vacant position declared under this constitution.

Responsibilities of members

Clause (5). Every member of the GRC shall;

a. participate in all general meetings and programs.

a. always uphold and defend the constitution.

b. fulfil their financial obligations as and when the need arises.

c. desist from acts which are detrimental to the development of *GCR*.

d. perform duties assigned to them by the Executive council as and when the need arises.

CHAPTER 3: FINANCES

Bank accounts

Article 4. *Clause (1).* The Community shall have an account in its name with a recognized banking institution with signatories being, the President and Financial Secretary.

Clause (2). To access the account, all two signatories must append their signatures.

Payment of dues

Clause (3). Members shall be required to pay non-refundable dues.

Clause (4). The amount to be paid shall be determined by the Executive Council, subject to the approval by the Legislative Council.

Clause (5). The Executive Council shall send a dues proposal to the Legislative Council by 31st January of each year.

Clause (6). The Legislative Council shall within seven days after receipt of the proposal, approve or reject or give recommendations on the proposal and communicate in writing, its decision, and reasons to the President.

Clause (7). Following the approval by the Legislative Council, the General Secretary shall communicate the amount of dues to be paid to the members not less than 5 days after the approval.

Clause (8) Notwithstanding any provisions in this constitution, dues payment shall be done equitably, considering full-time working and student status of members.

Clause (9). An increment in the dues shall not exceed 35% of the previous year.

CHAPTER 4 :THE STRUCTURE OF *GCR*

Composition

Article 5. *Clause (1).* The *GCR* shall be composed of the working body and the General Assembly.

Clause (2). The working body shall be composed of the Executive Council, Legislative Council, Judiciary Council and Standing Committees.

Clause (3). Except the Standing Committees, and unless otherwise stated in this constitution, the working bodies in 5(2) shall;

a. be independent, in the performance of their duties.

b. develop working documents to guide their operations and meetings that come under them.

Clause (4) The working documents prescribed in 3(b) shall not be in contravention of any provisions in this constitution.

C*lause (5).* The entire working bodies of the *GCR* shall meet not less than 7 days after the inauguration of the entire working bodies.

Clause (6). The meeting referred to in 5(5) shall be known as an Extraordinary Meeting, aimed towards providing training on the constitution, and shall be chaired by the President, and assisted by the Speaker and the Chief Justice.

Clause (7) Unless otherwise stated in this constitution, no member shall hold more than one office at a time.

Term of office

Clause (8) The Speaker, Chief Justice, Electoral Commission Chairperson and his or her deputies and Chairman of the audit board shall, subject to their retention of membership of the *GCR*, hold office from the time of their appointment for five (5) years, and may be reappointed for a last term of five (5) years.

Clause (9) Without prejudice to clause 8 of this article, a term of holding office by elected and appointed members of the Executive Council, chairpersons and members of any committee or commission, not specified in the preceding clause shall be three years, counting after the conduct of General Elections, and may;

a. be eligible for re-election, or reappointment for two more terms in the case of an officer of the executive council.

b. unless otherwise stated in the constitution, be eligible for several reappointment, in the case of a member or chairperson of a committee or commission.

Clause (10) The headquarters of the *GCR* shall be in the capital city of the Russian Federation, and all dates and timeliness specified in this Constitution shall be according to the dates and times in the Capital city.

CHAPTER 5 : THE EXECUTIVE COUNCIL

Composition

Article 6. *Clause (1).* There shall be an executive council which shall be composed of the President, Vice President, Financial Secretary, General Secretary, Organizing Secretary, Public Relation Officer (PRO), and Women Commissioner, who shall be elected in the manner prescribed by this constitution.

Clause (2). Other members of the executive council shall include the Vice General Secretary, Vice Organizing Secretary, and Vice Public Relations Officer (PRO), who shall be appointed in the manner prescribed by this constitution, and subject to their fulfilment of qualifications, spelled out in article 28(1a to 1f).

Clause (3). The executive authority of the *GCR* shall be vested in the president and shall be exercised within the limits of this constitution.

Clause (4). Notwithstanding 6(3), the President shall exercise the executive authority in consultation with the executive council.

The President

Article 7. *Clause (1)*. There shall be a president who shall be elected according to the manner prescribed in this constitution and shall:

a. be responsible for coordination of the functions of other members of the executive council.

b. appoint members and chairpersons of standing committees, prescribed in this constitution, in consultation with the executive council, not less than 7 days after assuming office.

c. oversee all external affairs of the Community in a manner not inimical or detrimental to the good name of the Community.

d. preside over all meetings of the Executive Council and General Assembly, unless otherwise provided by this constitution.

e. represent the Community at conferences and deliberations where the Community is invited.

f. be the principal signatory to all the cheques, vouchers, and accounts of the Community.

g. direct the general affairs of the Community.

h. subject to the availability of funds, and in consultation with the Executive Council, direct the Financial Secretary to disburse funds for activities and programs of the *GCR*.

i. present to the Legislative Council, an address of the State of the *GCR* and annual budget, any day from February 1 to February 7, each year.

j. notify the Speaker through the General secretary of unavailability or incapacity to perform his/her duties.

The Vice President

Article 8. *Clause (1).* There shall be a Vice President who shall be elected according to the manner prescribed in this constitution and shall:

a. assist the president in carrying out his/her duties.

b. fulfil the duties of the president in case the president is incapacitated or unable to perform his or her duties until such a time the president is capable.

c. become the president in case of the demise of, or removal of, the president from office.

i. the vice president, upon assuming office, as president, as a result of a situation described in 8(1c) shall within four weeks of assuming office, appoint from among members of the *GCR*, a vice president.

ii. notwithstanding 8(1ci), a new vice president will not be appointed in the event that the situation described in 8(c) occurred in less than 4 months to the conduct of General Elections of the *GCR*.

d. in collaboration with the organizing secretaries, coordinate the affairs of the various committees.

e. be an administrator of all social media platforms of the *GCR*.

f. perform any other duties assigned to him/her by the president.

The General Secretary

Article 9. *Clause (1)*. There shall be a general secretary who shall be elected according to the manner prescribed in this constitution and shall:

a. take, keep, and report truly accurate minutes of all proceedings of the Executive Council and General Assembly Meetings of *GCR*, except otherwise stated by this constitution.

b. have custody of all documents of *GCR* relevant to the office of the General Secretary and have all correspondence received by other members of the executive council.

c. on the authority of the president, issue notices of General Assembly Meetings, Meetings of the Executive Council, the Extraordinary Meeting, not less than

seventy-two (72) hours before the scheduled meeting, unless it is an emergency meeting.

d. issue and receive membership application forms for the purposes of registering new members of the *GCR*.

e. issue and receive branch application forms for the purposes of registering new *GCR* branches in the manner prescribed in this constitution.

f. be an administrator of all social media platforms of the *GCR*.

g. write and issue appointment letters to persons appointed by the Executive Council under provisions of this constitution.

h. within one month of assuming office, and in consultation with the president, appoint a vice general secretary to assist in the discharge of his or her duties.

The Financial Secretary

Article 10. *Clause (1)* There shall be a financial secretary who shall be elected according to the manner prescribed in this constitution and shall:

a. receive all funds accruing to *GCR* and disburse such funds as the president may direct.

b. keep proper records of monies received and all authorized expenses made.

c. be one of the signatories to the bank account and shall prepare a financial report annually.

d. be a signatory to all cheques and vouchers to *GCR* where appropriate.

e. keep a true and accurate financial record of financial transactions of the Community;

f. on any day from 27th December to 29th December, present in parliament, an annual statement of the financial position of the *GCR*, and render accounts on all income/receipt and expenditure/payments of the *GCR*.

g. notwithstanding the preceding clause, in an election year, the financial statement and rendering of accounts shall be done by the outgoing Financial Secretary and the Out-going President.

h. perform any other duties assigned to him/her by the executive council.

Organizing Secretary

Article 11. *Clause (1).* There shall be an Organizing Secretary who shall be elected according to the manner prescribed in this constitution and shall;

a. be responsible for the organization and coordination of all activities and programs of *GCR*.

b. within one month of assuming office, and in consultation with the president, appoint a vice organizing secretary to assist in the discharge of his or her duties.

c. perform any other task assigned to him/her by the Executive Council.

The Public Relation Officer (PRO)

Article12. *Clause (1)*. There shall be a public relations officer who shall be elected according to the manner prescribed in this constitution and shall;

a. be responsible for the posting of official notices of *GCR*.

b. be the chairman of the publicity committee.

c. be the spokesperson for the Community in consultation with the president.

d. be an administrator of all social media platforms of the *GCR*.

e. within one month of assuming office, and in consultation with the president, appoint a vice PRO to assist in the discharge of his or her duties.

The Women's Commissioner

Article 13 *Clause (1)* There shall be a Women's Commissioner which shall be elected according to the manner prescribed in this constitution and shall:

a. be responsible for organizing all women activities.

b. advise the executive council on issues concerning the women in the Community.

c. perform any other duties given her by the executive council.

CHAPTER 6 : THE LEGISLATIVE COUNCIL

Establishment

Article 14 *Clause (1)* There shall be established a Legislative Council under the *GCR* which shall perform such functions as are specified in this Constitution.

Clause (2) Subject to the provisions of this Constitution, the legislative power of the *GCR* shall be vested in the Legislative Council.

Composition

Article 15 *Clause (1)* The Legislative Council shall be composed of:

a. the Speaker who shall be appointed by the President in accordance with the provisions in the constitution.

b. the Deputy Speaker who shall be elected in a manner specified in this Constitution.

c. the Clerk who shall be appointed in a manner specified in this Constitution.

d. the Presidents and General Secretaries of all recognized branches of the *GCR*.

Functions

Clause (2) The Legislative Council shall:

a. vet and approve all appointments for offices under the *GCR*, unless otherwise stated in this constitution.

b. receive, discuss and approve budgets of bodies under the *GCR* within 7 days after receiving proposals.

c. debate issues concerning the interest of members and may pass resolutions on them, and such resolutions shall be binding on the commission related to such an issue.

d. have the authority to inquire into the activities and administration of Executive Officers as Legislature may determine by summoning such officers before Legislative Council or any legislative committee.

e. Develop a working document to guide its operations.

The Speaker

Article 16 *Clause (1)* There shall be a Speaker of Legislative Council who shall be appointed by the President in accordance with the provisions of this Constitution.

Clause (2) The Speaker shall vacate his office if:

a. he becomes an Executive Officer under the Executive Council; or

b. he resigns from office by writing signed by him and addressed to the Clerk of Legislative Council; or

c. any circumstance(s) arise(s) that if he were not the Speaker, would have disqualified him from becoming a member of the Legislative Council; or

d. he is removed from office by a resolution bill of Legislative Council supported by the votes of not less than three-quarters of all the members.

Clause (3). The Speaker shall be sworn in by the outgoing Judicial Council Chairperson on the first day of Legislative Council sitting after dissolution of the outgoing Legislative Council before any business of Legislature is conducted.

The Deputy Speaker

Article 17 *Clause(1).* There shall be a Deputy Speaker of Legislative Council who shall be elected by the members of Legislative Council from among the members.

Clause (2). The members of Legislative Council shall elect a person to the office of Deputy Speaker when Legislative Council first meets after dissolution of the Legislature and if the office becomes vacant otherwise than by reason of dissolution of the immediate past Legislative Council, at the first sitting of Legislative Council after the office becomes vacant.

Clause(3). The Deputy Speaker shall assume the position of Speaker in the absence of the Speaker and shall on such circumstances waive his voting rights.

The Clerk

Article 18. *Clause (1)* There shall be a Clerk of Legislative Council who shall be appointed by the Speaker of Legislative Council from among members of the Legislative Council and approved by a simple majority of the members of Legislative Council.

Clause (2) The Clerk shall be the Secretary of the Legislative Council and shall perform such other administrative functions as the Speaker may request.

CHAPTER 7: JUDICIAL COUNCIL

Judicial power of the *GCR*

Article 19 *Clause (1).* Judicial Power of the *GCR* shall reside in the Judicial Council and shall be exercised by the Judicial Council in accordance with the provisions of this Constitution and accordingly neither the President nor Legislature nor any office under the *GCR* shall have or be given final judicial power.

Composition

Clause (2). The Judicial Council shall be composed of:

a. the Chief Justice who shall be appointed in manner prescribed by this constitution.

b. 2 judicial representative from all recognized branches of the *GCR*.

Independence of the Judicial Council

Clause (3). The Judicial Council shall in the performance of its function be subject to this Constitution.

Clause (4). Neither the President nor the Legislative Council nor any person acting under the authority of the President or Legislative Council nor any other person shall interfere with Judicial Council officers or other persons exercising judicial power, in the exercise of judicial functions and all members shall accord to the Judicial Council such assistance as the judicial council may reasonably require to protect the independence, dignity and effectiveness of the Judicial Council, subject to the Constitution.

Clause (5) A Judicial Commission member or any person exercising judicial power in accordance with this constitution shall not be liable to any action or suit for any act or omission by him in the exercise of the judicial power.

Clause (6). The Judicial Council shall formulate rules of procedure for the conduct of its activities.

The Chief Justice

Clause (7). There shall be a chief justice who shall also be the Judicial Council chairperson and shall be appointed by the President in accordance with the provisions of this Constitution.

Clause (8). No member shall be qualified to be appointed as Judicial Council chairperson unless he or she is a member in good standing.

Clause (9). The Chief Justice shall appoint judges from among members of the Judicial Commission, for the purposes of hearing cases brought before it.

General jurisdiction of the Judicial Council

Clause (10) The Judicial Committee shall be the only court of the *GCR* and shall have such appellate and other jurisdiction as may be conferred on it by this Constitution.

Clause (11) The Judicial Council shall not be bound to follow the decisions of any other committee.

Clause (12) The Judicial Committee may while treating its previous decisions as normally binding, depart from a previous decision when it appears to it right to do so.

Original jurisdiction

Clause (13). The Judicial Committee shall have original jurisdiction in:

a. all matters relating to the enforcement and interpretation of this Constitution.

b. all matters arising as to whether a resolution made by Legislative Council is in excess of the powers conferred on Legislative Council or any other authority.

Appellate jurisdiction

Clause (14). The Judicial Council shall have appellate jurisdiction in every issue relating to resolving conflicts between members or group(s) of members.

Clause (15). The Judicial Committee shall have appellate jurisdiction over all electoral disputes lodged with the electoral commissioner.

CHAPTER 8

STANDING AND AD HOC COMMITTEES

Standing Committees

Article 20 *Clause (1)* There shall be established, under this constitution, standing committees, and ad hoc.

Clause (2) Unless otherwise stated in this constitution, chairpersons and members of the standing committees shall be appointed by the president.

Clause (3) The chairperson of any standing committee shall be subject to the approval of the legislative council.

Clause (4) The Executive Council, may, where necessary, establish any standing committee not specified in this constitution, upon the approval of the legislative council.

Clause (5) Unless otherwise stated in this constitution, the Executive Council shall exercise oversight responsibility over the standing committees.

Clause (6) Unless otherwise stated, the president may remove from office, any chairperson or member of any standing committee, specified in this constitution, or created in accordance with 20(4).

Clause (7) Notwithstanding any provisions in this constitution, standing committees, specified in this constitution, shall not be subject to complete dissolution for more than 7 days.

Ad Hoc Committees

Clause (8). The president may constitute an ad hoc committee to execute a particular task.

Clause (9). The terms of reference for any ad hoc committee shall not conflict with the roles of any officer, committee, or commission, specified in this constitution.

Clause (10). No ad hoc committee shall function for more than 3 months after their establishment.

Clause (11). Notwithstanding the preceding clause, an ad hoc committee, expected to last for more than 3 months shall be subject to the approval by parliament.

Projects Implementation Committee

Article 20 *Clause (1)* There shall be established a Project and Implementation Committee of the *GCR* which shall be composed of:

a. the Project and Implementation Chairperson, who shall be appointed by the President in a letter signed by the President and the General Secretary to the person and copied to the Speaker

b. four (4) other members appointed by the President.

Clause (2) This committee will see to the implementation and execution of all projects initiated by the executive council, and take, keep proper and true record of all the physical assets of *GCR*.

Publicity Committee

Article 21 *Clause (1).* There shall be established a Public Relations Office under the *GCR* which shall comprise:

a. the Public Relations Officer of the *GCR*, who shall be the chairman of the committee

b. the PRO representation of all recognized branches of the *GCR*

Clause (2) The Public Relations Office shall:

a. be responsible for publicizing all activities of the *GCR* in consultation with the commission or committee concerned.

b. strategize as to how to disseminate information and make information accessible to all members under the *GCR*.

c. monitor all *GCR* social media platforms and ensure sanity.

d. perform any other functions as may be assigned by the Executive Committee.

Finance Committee

Article 22 Clause *(1)* There shall be a Finance Committee under the *GCR* which shall comprise:

a. the Financial Secretary of the *GCR* who shall be the Chairperson

b. Finance representative of all recognized branches of the *GCR*.

Clause (2) The Finance Committee shall:

a. be responsible for seeking sponsorship to fund *GCR* activities.

b. prepare financial statements of the *GCR*.

c. ensure prudent financial practices of the *GCR*.

Audit Committee

Article 23 *Clause (1)* There shall be established under the *GCR* an Audit Committee.

Clause (2) The Audit Committee shall be composed of;

a. a chairperson and three (3) other members who are not office holders of the *GCR* and possess ample knowledge in accounting.

b. an ex-officio member from the Judicial Council who shall be appointed by the Chief Justice.

Clause (3) The Audit Committee chairperson and members as in clause (2)(a) of this article shall be appointed by the Legislative Council in consultation with the Speaker.

Clause (4) Auditing of the *GCR* account(s) shall from January 16 to February 16 each year.

Clause (5) The Audit Committee shall submit their report to the Legislative Council and copy to the Embassy of Ghana in the Russian Federation.

Clause (6) The Audit Committee shall, for the purposes of performing its duties under this Constitution, have the power to summon any *GCR* officer for clarification and explanations.

Clause (7) The Audit report shall include:

a. an Income and Expenditure Account of the *GCR*;

b. a statement of financial position (balance sheet);

c. the Audit Committee's assessment of the financial statements of the *GCR*; and

d. the Audit Committee's comments and recommendations.

Legal Affairs Commission

Article 24 *Clause(1)* There shall be a Legal Affairs Commission established under the *GCR* which shall consist of:

a. the Legal Affairs Commissioner, who shall be appointed by the President in a letter signed by the President and the General Secretary to the person and copied to the Speaker

b. three (3) members who shall be appointed by the Legal Affairs Commissioner subject to the approval of the president.

Clause (2) The Legal Affairs Commission shall:

a. scrutinize the constitutions or working documents of all branch communities of the *GCR* and ensure that they are in conformity with the *GCR* Constitution.

b. advise the Executive Council on all legal matters that may arise.

c. perform any function assigned to it by the Legislative Council or the Executive Council.

d. represent any *GCR* officer at *GCR* Judicial or *GCR* quasi-judicial Committee hearings.

e. advise Legislative Council on all legal related matters and aid them in the formulation of standing orders.

f. may represent any member who is a party in a case before the *GCR* Judicial Committee.

g. shall discharge such other duties of a legal nature as may be referred to it by the President or imposed on it by this Constitution or resolution of Legislative Council.

Clause (3) All *GCR*-related proceedings against the President shall be instituted against the Legal Affairs Commission.

CHAPTER 9: COUNCIL OF ELDERS

Establishment

Article 25 *Clause (1)* There shall be established in the GCR a council of Elders, comprising of all former presidents, vice presidents, chief justices, speakers of parliament, legal affairs commissioners and one person, designated by the Embassy of the Republic of Ghana in Moscow.

Clause (2) The council of elders shall play an advisory and consultative role in matters related to the GCR.

Clause (3) The General Secretary of the GCR shall be the convener of the council of elders, and on the orders of the President, convene the council for a meeting to discuss issues as the president may determine.

Clause (4) Decisions or advises by the council of elders shall not be binding on the GCR or the officers on whom such decisions or advises are referred.

CHAPTER 10: ELECTIONS

Right to vote

Article 27 *Clause (1)* Every member governed by the *GCR* has the right to vote.

Clause (2) All members shall have one vote each.

Clause (3) Notwithstanding clause (1) of this article, no member shall be allowed to vote, if at the time of compilation of the voter's register, he or she had not fulfilled his or her dues payment responsibilities.

Qualification for candidates

Article 28 Clause (1) Any member governed by the *GCR* shall be qualified to contest elections provided he or she satisfies the criteria set hereof:

a. he or she shall have been a member of the *GCR* for at least 6 months.

b. for the purposes of clarity and without prejudice to section (a) of this clause, aspirants who are students, and do not have permanent residence permits in Russia, shall not be in their final two (2) years of studies.

c. he or she has not been found guilty of embezzlement and or misappropriation of member's or *GCR* funds by any judicial committee or by any quasi-judicial committee set up by the *GCR*.

d. he shall not have been impeached, suspended, or dismissed as an officer of any branch of *GCR* in the last 5 years to the conduct of an election.

e. he or she shall not have been found guilty of violation of this Constitution and contempt of the judicial commission of the *GCR* in the last 5 years to the conduct of an election.

f. he or she shall not be an officer holding any position under the *GCR* at the time of filing his or her nomination.

g. he or she shall submit himself or herself for public vetting by a vetting panel that shall be set up in a manner provided in this Constitution.

Clause (2) Any person shall petition the Electoral Commission for the enforcement of the provisions of clause one (1) during the period provided by the Electoral Commission for hearing of petitions after the display of aspirants.

Clause (3) Any person seeking to contest for an office shall file nomination duly accompanied by a résumé/ Curriculum Vitae and one passport-size picture.

Conduct of general elections

Article 29 Clause (1) The elected officers of the Executive council of the *GCR* shall be elected through secret ballot by the members governed by the *GCR*.

Clause (2) At the time of filing for nominations, a vice presidential aspirant shall be designated against his or her partnering presidential aspirant and shall be deemed as an elected officer should the patterning presidential aspirant win.

a. a presidential and his or her accompanying vice president candidate shall be vetted and scored as a team together and at the same time

Clause (3) Notwithstanding any provision in this Constitution, the Electoral Commission may adopt the electronic voting system if it appears prudent to do so in the conduct of any elections.

Clause (4) A simple majority vote is required to win an election, and candidates who stand unopposed shall require at least fifty percent plus (50% +) of the total valid votes cast to win the election.

Clause (5) Notwithstanding clause four (4) of this article, fresh nominations shall be opened within three (3) days after declaration of the provisional results by the Electoral Commission where an unopposed candidate fails to attain the requisite percentage.

Clause (6) A run-off may be conducted for candidates who may tie.

Clause (7) All offices shall be held for three years, and any retiring officer shall be eligible for re-election subject to satisfying the relevant provisions under article 28 of this Constitution.

Clause (8) Unless otherwise provided in this constitution, processes of General Elections shall begin on October 1 and end on November 30 of the election year.

Clause (9) pursuant to the preceding clause, the electoral commission shall develop and share its working timeline, taking into consideration, all possible issues that may arise, in accordance with this constitution.

Clause (10) In the event where a position is vacant at the close of a nomination period, the nomination time shall be extended by forty-eight (48) hours and all members shall be duly notified.

Clause (11) If the position is still vacant after the forty-eight (48) hour extension then the election shall proceed.

Clause (12) Such a vacancy envisaged under the preceding clause shall be filled by an appointment by the incoming *GCR* Executives, and persons appointed shall satisfy the provisions of article 28(1)(a-f).

Clause (13) The Electoral Commissioner shall after an election declare provisional results which shall become final if the result of the election is not challenged within seventy-two (72) hours.

Clause (14) Any instrument from the electoral commission which states that a member named in the instrument is declared elected shall be prima facie evidence that the person is duly elected.

Clause (15) Subject to this Constitution, all other elections of recognized branches of the *GCR* shall be conducted before the day of voting in the General Elections of the *GCR*.

Clause (16) Unless otherwise stated in this constitution, the Electoral Commission shall in the event where the office of an elected member of the Executive Council becomes vacant organize a by-election within two weeks to fill the vacancy.

Clause (17) Any member intending to contest any by-elections shall satisfy the provisions in article 28 of this constitution.

Clause (18) A by-election shall not be held if the position becomes vacant one month before the general election.

Clause (19) Pursuant to clause (18) the Executive Council shall appoint any member of the Executive Council to fill the vacancy.

Vetting and vetting panel

Article 30 Clause (1) The Electoral Commissioner shall for the satisfaction of article 28 form at most a seven (7) member vetting panel, of which five (5), excluding the chairman of the panel, shall score the candidates at a time for the purposes of vetting the aspirants and ensuring that candidates for any election under this Constitution satisfy the requirements provided for in this Constitution or regulations as may be set out by the Electoral Commission.

Clause (2) The Electoral Commission shall publish the criteria by which every candidate shall be vetted at least one week before the day of vetting.

Clause (3) Any aspirant may petition the Electoral Commission within forty-eight (48) hours after the publication of the criteria envisaged under clause (2) of this article for a revision, amendment or otherwise.

Clause (4) The Electoral Commissioner shall within twenty-four (24) hours set up a three (3) member committee from the Commission to adjudicate on such a petition, and any decision of the committee shall be final.

Clause (5) The Electoral Commission shall publish on all social media platforms a full report of all candidates so vetted at least seven (7) days before the day of elections.

Clause (6) Such a report in clause 5 of this article shall entail;

a. whether a candidate so vetted is recommended.

b. the total score obtained by each candidate so vetted detailing the score obtained under each criterion.

Clause (7) Any person not recommended by the vetting panel shall not be presented to the electorates for voting.

Clause (8) Candidates not recommended shall be given a written notice of their status by the Electoral Commissioner, and such notice shall contain a detailed account of the reasons for their non-recommendation not later than seventy-two (72) hours after vetting of the candidate in question.

Clause (9) Any candidate who intends to petition the Judicial Committee on the results of the vetting is entitled to do so not later than twenty-four (24) hours after receiving a notice of non-recommendation.

Clause (10) The Judicial Committee shall hear the petition as in clause (9) of this article within forty-eight (48) hours upon receipt of such petition and its ruling shall be final.

Challenging election results

Article 31 Clause (1) The provisional results of an election may after it has been published be challenged within seventy-two (72) hours and NO petition shall be received after this period.

Clause (2) Any petition for challenge of elections shall be presented to the Judicial Committee for adjudication.

Clause (3) The Judicial Committee shall without prejudice to any provision in this Constitution adjudicate on the merits of the petition within twenty-four (24) hours after receipt of the petition.

Electoral Commission

Article 32 Clause (1) There shall be an Electoral Commission under the *GCR* chaired by a commissioner, who shall be appointed by the President in accordance with the provisions of this constitution.

(2) Two deputy commissioners shall be appointed by the Electoral Commissioner from among the other members of the commission, which shall include electoral commission representation of all recognized *GCR* branches.

Clause (3) Except as provided in this Constitution, the Electoral Commission, in the performance of its functions, shall not be subject to the direction or control of any person or authority.

Functions of the Commission

Article 33 Clause (1) The Electoral Commission shall have the following functions;

a. to compile the register of voters and revise it at such periods as may be necessary;
b. to conduct and supervise all *GCR* elections, referenda and opinion polls;
c. to educate the members on the electoral process and its purpose;
d. to make additional rules and regulations in the performance of its functions;

Clause (2) Notwithstanding article 31(1)(d) the electoral commission shall make the additional rules and regulations in consultation with the Legal Affairs Commission.

CHAPTER 11: THE GENERAL ASSEMBLY

Composition

Article 34 Clause (1). The General Assembly of the *GCR* shall be composed of all registered members of the *GCR*

General Assembly Meeting

Clause (2) The President shall convene general assembly meetings on;

a. Any day from February 15 to February 28, for presentation of annual action plan, discussion of matters arising, swearing in of new members and inauguration of branches, questions, and answers.

b. Any day from August 1 to August 31 for assessment of annual action plan, discussion of matters arising, swearing in of new members and inauguration of branches, questions, and answers.

Special General Meeting

Clause (3) Any twenty (20) members of *GCR* may request the General Secretary to summon a special general meeting provided that at least twenty-four (24) hours' notice with agenda attached.

Quorum

Clause (4) A quorum of the General Assembly meeting shall be constituted by the President or General with any other twenty (20) members present at the meeting.

Clause (5) If, in any meeting of the General Assembly, before the commencement of business, a quorum is not formed, the meeting shall stand and be adjourned within a week.

Clause (6) If the quorum is not formed on the adjourned day, the meeting and its agenda shall be abandoned.

CHAPTER 12: RESIGNATION AND REMOVAL

Resignation

Article 35 Clause (1) Any *GCR* officer shall communicate his resignation in writing to his respective head of council or committee under the *GCR* seven (7) days before the date of resignation and copy the General Secretary.

Clause (2) The General Secretary shall publish such resignation on all social media platforms of the *GCR* within four (4) days after receipt of the resignation letter.

Clause (3) In a case of an en bloc resignation of the Executive Council officers, they shall communicate their resignation in writing to the Judicial Council Chairperson and copy same to the Speaker of the Legislative Council.

Clause (4) In pursuance of clause three (3), the Judicial Council Chairperson shall in consultation with the Speaker of the Legislative Council form an interim management committee from among the *GCR* until fresh elections are held.

Clause (5) In the event where an *GCR* officer resigns, he or she shall hand over all *GCR* properties in his or her possession to the Chairperson of his or her council or committee, three (3) days before the date of resignation.

Grounds for removal of *GCR* officers

Article 36 Clause (1) A *GCR* officer(s) shall individually or severally be removed or suspended from office if found by the Judicial Committee in accordance with the provisions of this article to have:

a. acted in willful violation of the oath of office set out in the schedule;

b. acted in violation of any provision of this Constitution;

c. misappropriated or embezzled funds of the *GCR*;

d. grossly misconducted himself/herself;

e. conducted himself in a manner which brings or is likely to bring the name of the *GCR* into disrepute;

f. been incapable of performing the functions of his office by reason of infirmity of mind or body.

Procedure for removal of officers

Article 37 Clause (1) An Executive Officer under the *GCR* shall only be removed by these procedures:

a. a petition for the removal of an Executive Officer shall by notice in writing be addressed to the Judicial Council Chairperson stating the grounds for removal;

b. attached to the petition shall be a Schedule containing the names, residential address in Russia, and signatures of twenty (20) members in good standing ;

c. a copy of the proceedings shall be served on the Executive Officer whom such a proceeding has been proffered against at least two (2) days before the hearing of such case;

d. the chairperson of the Judicial Council shall within seven (7) days on the receipt of such a notice of impeachment, empanel the judicial committee to ascertain the merits of such a case;

e. the decision of the judicial committee shall be published on all social media platforms of the *GCR*;

f. an Executive Officer so impeached shall cease to be an officer in strictosenso under the *GCR* and shall lose all privileges and benefits accruable to an Executive Officer.

Clause (2) The Judicial Council Chairperson, the Speaker of Legislative Council or the Chairperson of the Electoral Commission, or its members shall only be removed by the procedure specified in this clause:

a. petition of removal shall by notice in writing be addressed to the President.

b. the President shall constitute a five (5) member panel consisting of the chairperson of the audit committee, two (2) Judicial Committee members, and two other persons who are neither members of the Executive Council nor members of the Legislative Council;

c. the committee appointed under 2 (b) of this clause shall inquire into the petition and recommend to the President whether the affected persons ought to be removed;

d. all proceedings under this clause shall be held in camera and the affected person is entitled to be heard in defence by himself or herself or by Counsel of his or her own choice who shall be a member of the *GCR*; and

e. the President shall in each case act in accordance with the recommendations of the committee.

Clause (3) A review lies as of right from the decision of the Judicial Committee in clause (1) and the committee described under clause (2) to the Judicial Committee which shall be constituted of three (3) members and such application for review shall be made within forty-eight (48) hours.

Clause (4) Any vacancy created by virtue of any provision in this article shall be filled within twenty-one (21) days after such vacancy is created.

Vote of no confidence

Article 38 Clause (1**)** Without prejudice to any provision in this Constitution, an Executive Officer(s) shall be removed from office on the passing of a vote of no confidence by at least two thirds (2/3) of the membership of Legislative Council.

CHAPTER 13: *GCR* BRANCH COMMUNITIES

Establishment

Article 39 *Clause (1)* To ensure the smooth running of the *GCR* activities across the Russian Federation, there shall be established under this constitution, *GCR* Branch Communities.

Clause (2) Pursuant to clause 1 of this article, the branch communities shall be established along the Federal Constituent Entities of the Russian Federation.

Clause (3) A new branch community shall be required to request for, and complete an application form, and submit it to the General Secretary of the *GCR*, along with;

a. its working document

b. a schedule, containing the names, residential address in Russia, emails, telephone numbers of at least 20 members of the proposed branch association.

i. the members, described in 3b of this clause, should have been registered members of the *GCR*, before their inclusion in the schedule described in this clause.

ii. The schedule shall also indicate at least three (3) persons for the purposes of correspondence between the *GCR* and the applicants.

Clause (5) The Executive council shall, within 3 days after receiving such application, forward a copy of the working document to the Legal Affairs Commission.

Clause (6) The legal affairs commission shall, within 7 days after receiving the working document described in this article, scrutinize the working document to ensure that it does not violate any provisions in this constitution.

Clause (7). The legal affairs commission shall send its recommendations to the President, and in the case of rejection;

a. outline the reasons why the proposed branch cannot be recognized.
b. recommend any corrections that are required to be made for the purposes of re-application.

Clause (8) The Executive Council shall serve on the applicants, a letter of approval or rejection signed by the president, stating the reasons for the rejection or approval.

Clause (9) All branch associations duly approved shall;

a. within 5 days of the approval, submit to the Legislative Council and Judicial Council, a letter of approval from the Executive Council and a copy of their working documents.
b. be inaugurated by the President at the next General Assembly meeting after the approval.

Clause (10) Within 14 days after the approval of any new *GCR* branch, the President, Judiciary Commission, Legislative Commission, and the Electoral Commissioner shall ensure that representatives of such a branch are appointed to the various offices created for them, in accordance with the necessary provisions of this constitution.

CHAPTER 14: AMENDMENT AND REVISION

Amendments

Article 40 *Clause (1)* Any member shall petition the Chief Justice for the amendment of any provision of this Constitution.

Clause (2) Any notice for the amendment of any provision of this Constitution shall be accompanied by a Schedule containing the names and residential addresses of at least 20 members in good standing.

Clause (3) The Judicial Council Chairperson shall constitute a committee of three (3) members from the judicial committee which shall sit within fourteen (14) days on the receipt of such a notice.

Clause (4) The Judicial Council shall report its decision for amendment or otherwise to the Executive Committee which shall within three (3) days of receipt of such a report submit it to the Legislative Council for debate.

Clause (5) A sitting of Legislative Council for the purposes of the debate shall be decided by two- third (2/3) of the members present and voting.

Clause (6) The decision of Legislative Council for the amendment shall be served on the President in the form of a resolution bill for him to assent.

Clause (7) The President shall serve the member body with the amendments.

Revision

Article 41 *Clause (1)* Any person shall petition the Judicial Council Chairperson for a total revision of this Constitution.

Clause (2) Any notice for the total revision of this Constitution shall be accompanied by a Schedule containing the names and residential addresses of at least 20 members in good standing.

Clause (3) The Judicial Council shall sit within forty-eight (48) hours on the receipt of such a petition to consider its merits or otherwise.

Clause (4) In the event where merit is found in such a petition, a Constitution Review Committee shall be set up by the Judicial Council Chairperson to solicit and collate views of members and to review the Constitution.

Clause (5) The Constitution Review Committee shall prepare a draft constitution and a report and forward same to the Executive Committee which shall within three (3) days of receipt of such draft constitution and report, submit it to the Legislative Council for debate.

Clause (6) A sitting of Legislative Council for the purposes of the debate shall be decided by two- third (2/3) of the members present and voting.

Clause (7) The decision of Legislative council for the revision shall be served on the President in the form of a resolution bill for him to assent.

Clause (8) The president shall serve on members with the revised constitution.

Clause (9) A total revision of this constitution may be done at least every five (5) years.

SCHEDULE

Part I– Transitional Provisions

1. This Constitution shall come into force seven (7) days after the referendum and promulgation by the members.
2. Notwithstanding anything in this constitution,
    a. any person duly elected under the law, convention, or practices, immediately in force before the coming into force of this Constitution, shall be taken to have been duly elected for the purposes of this Constitution.
    b. the person(s) so described in 2a of this part, shall within 1 month after the coming into force of this constitution, appoint all other members and chairpersons, or leaders of all offices created by this constitution.
3. Any person, so appointed to fill any position in accordance with 2b of this part, shall be deemed to have been so elected or appointed, and sworn to that particular office, in the manner prescribed in this constitution.
4. Notwithstanding points 1 and 2, the tenure of office of persons described in this part shall, 24 hours after all appointments are duly made, be in accordance with the tenure so prescribed in this constitution.

Part II - Transition Committee

1. Transition committee, consisting of the Out-going president or his or her representative, the incoming President or his or her representative, the Speaker, and the Chief Justice, shall be constituted from December 1 to December 29 of an election year.
2. The transition committee shall work together to ensure a smooth transfer of leadership to the new *GCR* Executive council.

Part III–Handing Over

1. The *GCR* shall hand over power to a newly elected *GCR* officers on 30th December.
2. Handing over ceremony shall follow the following order;

    a. The out-going Chief Justice swears in the Speaker of Parliament.
    b. The Speaker of Parliament swears in Members of Parliament.
    c. The out-going Chief Justice swears in the new Chief Justice.
    d. The Chief Justice swears in the President, Vice President, and other elected officers of the Executive Council.
    e. The President swears in members of members of the Judiciary council.
    f. The president gives a speech, after which other ceremonies as determined by the transition committee may follow.

Part III-Forms of Oath

THE PRESIDENTIAL OATH

I ……. having been elected to the high office of President of this noble Community, do in the name of the Almighty God swear that I will be faithful and truthful to *GCR*, that I will all times preserve, protect, and defend the Constitution of *GCR* and that I dedicate myself to the service and well-being of the members of *GCR* and to do right to all manner of person.

I further solemnly swear that should I at any time break this oath of office, I shall submit myself to the laws of *GCR* and suffer the penalty for it (so help me God)

(To be administered by the Chief Justice before the entire members of the GCR)

OATH OF VICE-PRESIDENT

I ……. having been elected to the high office of Vice President of this noble Community, do in the name of the Almighty God swear that I will be faithful and truthful to *GCR*, that I will all times preserve, protect, and defend the Constitution of *GCR* and that I dedicate myself to the service and well-being of the members of *GCR* and to do right to all manner of person.

I further solemnly swear that should I at any time break this oath of office, I shall submit myself to the laws of *GCR* and suffer the penalty for it (so help me God)

(To be administered by the Chief Justice before the entire members of the GCR)

OATH OF THE OTHER ELECTED OFFICERS OF THE EXECUTIVE COUNCIL

I ……. having been elected to the high office of ……. (Name it) of this noble Association do in the name of the Almighty God swear that I will be faithful and true to *GCR* that I dedicated myself to the service and well-being of members of *GCR* and to do right to all manner of persons.

I further solemnly swear that should I at any time break this oath of office, I shall submit myself to the laws of *GCR* and suffer the penalty for it. (SO, HELP ME GOD)

(To be administered by the Chief Justice before the entire members of the GCR)

OATH OF THE APPOINTED OFFICERS OF THE EXECUTIVE COUNCIL

I ……. having been appointed to the high office of ……. (Name it) of this noble Association do in the name of the Almighty God swear that I will be faithful and true to *GCR* that I dedicated myself to the service and well-being of members of *GCR* and to do right to all manner of persons.

I further solemnly swear that should I at any time break this oath of office, I shall submit myself to the laws of *GCR* and suffer the penalty for it. (SO, HELP ME GOD)

(To be administered by the President before the Executive Council, Parliament, and Chief Justice)

THE OATH OF THE CHIEF JUSTICE

I ……. having been appointed Chief Justice do (in the name of the Almighty God swear) (solemnly affirm) that I will bear true faith and allegiance to the *GCR* and that I will uphold the sovereignty and integrity of the *GCR* and that I will truly and faithfully perform the functions of my office without fear or favor, affection or ill-will; and that I will at all times uphold, preserve, protect and defend the Constitution and laws of the *GCR*. (so help me God).

(*To be administered by the out-going Chief Justice before the entire members of the GCR*)

THE OATH OF JUDICIARY COUNCIL MEMBERS

I ……. having been appointed as a member of the Judiciary Council do (in the name of the Almighty God swear) (solemnly affirm) that I will bear true faith and allegiance to the *GCR* and that I will uphold the sovereignty and integrity of the *GCR* and that I will truly and faithfully perform the functions of my office without fear or favor, affection or ill-will; and that I will at all times uphold, preserve, protect and defend the Constitution and laws of the *GCR*. (so help me God).

(*To be administered by the president before the entire members of the GCR*)

THE SPEAKER'S OATH

I …… do (in the name of the Almighty God swear) (solemnly affirm) that I will bear true faith and allegiance to the *GCR*; that I will uphold the integrity of the *GCR*; that I will faithfully and conscientiously discharge my duties as Speaker of the Legislative Council; and that I will uphold, preserve, protect and defend the Constitution of the *GCR*, and that I will do right to all manner of persons in accordance with the *GCR* Constitution and the laws and conventions of Legislature without fear and favor, affection or ill-will.(So help me God). (*To be administered by the Chief Justice before the entire members of the GCR)*

OATH OF MEMBERS OF PARLIAMENT

I …… do (in the name of the Almighty God swear) (solemnly affirm) that I will bear true faith and allegiance to the *GCR*; that I will

uphold the integrity of the *GCR*; that I will faithfully and conscientiously discharge my duties as Speaker of the Legislative Council; and that I will uphold, preserve, protect and defend the Constitution of the *GCR*, and that I will do right to all manner of persons in accordance with the *GCR* Constitution and the laws and conventions of Legislature without fear and favor, affection or ill-will.(So help me God). (*To be administered by the Speaker before the entire members of the GCR)*

OATH OF CHAIRPERSONS AND MEMBERS OF COMMITTEES

I ……. having been appointed to the high office of ……. (Name it) of this noble Association do in the name of the Almighty God swear that I will be faithful and true to *GCR* that I dedicated myself to the service and well-being of members of *GCR* and to do right to all manner of persons.

I further solemnly swear that should I at any time break this oath of office, I shall submit myself to the laws of *GCR* and suffer the penalty for it. (SO, HELP ME GOD)

(To be administered by the President before the Executive Council, Parliament, and Chief Justice)

THE OATH OF MEMBERSHIP

I ……... do (in the name of the Almighty God swear) (solemnly affirm) that I will bear true faith and allegiance to the *GCR* by the *GCR* Constitution established; and shall uphold and preserve, protect and defend the Constitution of the *GCR*. (So help me God) (*To be administered by the president at General Assembly Meeting).*

Compiled by Constitution Review Committee

JOHN KWOFIE CHAIRMAN

ALFRED AGBO	MEMBER
ALEXANDER Y. GAHIEKPO	MEMBER
EBENEZER AKUOKO	MEMBER
KAFUI KWAKU FEYI	MEMBER

Supervised by;

EBENEZER WEPARI

(*GCR* PRESIDENT, 2023)